BY ORDER OF THE COMMANDER
OFFUTT AIR FORCE BASE

OFFUTT AFB INSTRUCTION 31-125

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Security

LAW ENFORCEMENT OFFICERS SAFETY ACT (LEOSA) CONCEAL-CARRY AUTHORIZATION ON OFFUTT AFB

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This publication implements DoDI 5525.12, *Implementation of the Amended Law Enforcement Officers Safety Act of 2004 (LEOSA)* for Offutt AFB. This instruction assigns responsibilities and establishes procedures for the management of the Law Enforcement Officers Safety Act (LEOSA) on Offutt AFB. This instruction applies to all LEOSA-credentialed persons assigned, attached, or visiting Offutt AFB, Elkhorn and Scribner Communication Sites, Coffman Heights housing area, Capehart Chapel, and the Ehrling Bergquist Clinic. Paper and digital records defined as privacy act information will be disposed according to AFI 33-332, *Air Force Privacy and Civil Liberties Program*. All records created as a result of processes prescribed in this publication are maintained IAW AFMAN 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS), located at https://www.my.af.mil/afrims/afrims/afrims/rds/rds_series.cfm. Send comments and suggested improvements using AF Form 847, *Recommend Change of Publication*, through channels to: 55 SFS/MAX, 105 Airman Circle, Offutt AFB NE 68113.

SUMMARY OF CHANGES

Revised references, prohibited locations and removed requirements for vetting and registration of LEOSA-credentialed personnel assigned to Offutt AFB.

1. Background. The Law Enforcement Officers Safety Act (LEOSA) is a United States Federal law, enacted in 2004, that allows two classes of persons - the "qualified law enforcement officer" and the "qualified retired or separated law enforcement officer" - to carry a concealed firearm in any jurisdiction in the United States or United States Territories, regardless of state or local laws, with certain exceptions. The National Defense Authorization Act (NDAA) of 2013 expanded LEOSA application to law enforcement personnel who are or were granted the authority to make apprehensions under Article 7b of the Uniform Code of Military Justice (UCMJ).

1.1. DoDI 5525.12, *Implementation of the Amended Law Enforcement Officers Safety Act of 2004 (LEOSA)*, is the DoD guidance for implementing LEOSA on DoD installations. It specifically allows for the carry of concealed weapons by individuals who meet the requirements of 18 U.S.C. § 926B (Qualified Law Enforcement Officers) and § 926C (Retired Qualified Law Enforcement Officers).

1.2. Implementation of LEOSA for Offutt AFB is done as a Force Protection initiative to enhance the ability of qualified and credentialed LEOSA personnel to defend themselves and others against an act of violence, precipitating the use of deadly force. The arming of select qualified retired law enforcement officers will bolster baseline protection capability for Offutt AFB and could mitigate risks associated with some critical incidents (i.e. active shooter, work place violence, overt attack, etc.).

1.3. Qualified Law Enforcement Officers and Retired Qualified Law Enforcement Officers include active duty, reserve, National Guard, civil service and local state and Federal personnel who have a valid LEOSA credential.

1.4. This instruction does not apply to State-issued concealed weapons permits or concealed weapon licensees.

1.5. This instruction does not limit the authority of the Installation Commander to deny entry to individuals or items based upon current security or force protection conditions.

2. Responsibilities.

2.1. Installation Commander.

2.1.1. Directs an authorized LEOSA policy for Offutt AFB in accordance with DoDI 5525.12.

2.1.2. Delegates authority to the Defense Force Commander (DFC) to suspend or revoke an individual’s privilege to enter Offutt AFB with a firearm under LEOSA for violations of this instruction, DoDI 5525.12, 18 U.S.C. § 926B or § 926C, or State firearm laws.

2.2. DFC. Implements LEOSA policy, including the delegated authority to suspend or revoke an individual’s privileges.

2.3. Unit Commanders (including Tenants).

2.3.1. Unit Commanders must require LEOSA credentialed employees (military, civilian, and contract) to declare their LEOSA authority and intent to carry concealed.

2.3.2. Commanders must continually monitor suitability of personnel for arming and withdraw the authority to bear firearms when necessary. Military individuals placed on a “Do Not Arm” roster by a commander will have their LEOSA credential (§ 926B)

suspended until authorization to bear a firearm for duty is returned. Commanders will refer to AFI 31-117, *Arming and Use of Force by Air Force Personnel*, for supplemental information on arming suitability.

2.4. LEOSA-credentialed personnel.

2.4.1. All individuals authorized to conceal-carry a firearm under LEOSA must comply with the provisions of 18 U.S.C. § 926B or § 926C, as applicable, as well as any other local guidance from their issuing agency, state, or department, including limitations on caliber, ammunition, capacity, and design.

2.4.2. The holster must be specifically designed for the handgun being carried to protect against accidental discharge.

2.4.3. Military personnel.

2.4.3.1. LEOSA-credentialed, on-duty military members who are armed with a Government-issued firearm will not carry a personally owned firearm.

2.4.3.2. Members of the 55 SFS Staff Arming Program identified on an arming roster are not authorized to arm under LEOSA during duty periods, regardless if the individual is actively armed with a Government-owned firearm.

2.4.3.3. Off-duty military members or on-duty members not armed as part of security forces who are LEOSA-credentialed are permitted to conceal-carry.

2.4.4. Civilian employees. On-duty Department of the Air Force (DAF) Police Officers, who are armed with a Government-issued firearm, will not carry a personally owned firearm. Other LEOSA-credentialed civilian employees are permitted to carry concealed as long as it doesn't interfere with primary duties and responsibilities.

2.4.5. All LEOSA-credentialed members must declare firearms to Law Enforcement (military or civilian) or command officials (Commanders/First Sergeants) in the performance of their duties, and must declare firearms to law enforcement during a traffic stop, vehicle inspection, or when stopped as part of a Random Antiterrorism Measure (RAM).

3. Prohibited Areas (No Gun Zones).

3.1. LEOSA-credentialed personnel are prohibited from carrying a concealed firearm into any facility or area identified in Figure A2.1. in Attachment 2.

3.2. In addition to facilities/areas identified in Attachment 2, LEOSA-credentialed personnel are prohibited from carrying a concealed firearm into any other facility or area identified by the Installation Commander and marked by the off-limits placard in Figure A3.1. on Attachment 3.

4. Storage.

4.1. If the need arises to enter a facility or area identified in Attachment 2, or an area marked with an off-limits placard, personnel must disarm and store the firearm. When a firearm is not in the physical possession of the LEOSA-credentialed member, the firearm will be stored in a secure gun storage device. When stored in an unattended vehicle, it will be stored in a

locked secure gun storage device and concealed from public view. Disarming and storing the firearm will be done in a discrete manner so as not to cause public alarm or panic.

4.2. The privately owned vehicle must remain locked when a firearm is stored inside the vehicle and the vehicle is unattended by the LEOSA-credentialed person.

4.3. Firearms will not be stored in a vehicle on the installation for more than 24 hours.

5. Enforcement of the Law and LEOSA Identification.

5.1. A LEOSA credential does not grant the bearer any authority to act on behalf of the USAF or any other agency to exercise law enforcement authority.

5.2. LEOSA-credentialed personnel will not self-dispatch or respond to any incident outside of the immediate vicinity or attempt to enforce any law(s). LEOSA-credentialed personnel may only carry a concealed firearm for self-defense and defense of others in the immediate vicinity.

5.3. LEOSA-credentialed personnel carrying a firearm will identify themselves to responding law enforcement personnel during an incident.

6. Suspension and Revocation of LEOSA Credentials.

6.1. Suspension. Individuals employed on the installation, who have a credential under 18 U.S.C. § 926B, will have the credential suspended when placed on a Do Not Arm (DNA) roster by their Commander.

6.2. Revocation. Any individual issued a credential under 18 U.S.C. § 926C found to be prohibited by Federal law from receiving a firearm will have their credential revoked.

6.3. Any person credentialed under 18 U.S.C. § 926B or § 926C may have their privilege to enter Offutt AFB with a firearm under LEOSA suspended or revoked for violations of this instruction, DoDI 5525.12, 18 U.S.C. § 926B or § 926C, or State firearm laws.

GAVIN P. MARKS, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 31-117, *Arming and Use of Force by Air Force Personnel*, 6 Aug 20

DoDD 5210.56, *Arming and Use of Force*, 18 Nov 16

DoDI 5525.12, *Implementation of the Amended Law Enforcement Officers Safety Act of 2004 (LEOSA)*, incorporating Change 2 effective 29 June, 2018

DoDM5100.76_AFMAN31-101V2, *Physical Security of Sensitive Conventional Arms, Ammunition & Explosives (AA&E)*, 20 Feb 20

Abbreviations and Acronyms

AFGM – Air Force Guidance Memorandum

AFI – Air Force Instruction

AFMAN – Air Force Manual

AFRIMS - AF Records Information Management System

DAF – Department of the Air Force

DFC - Defense Force Commander

DoD - Department of Defense

DoDI - Department of Defense Instruction

LEOSA - Law Enforcement Officers Safety Act

NDAA - National Defense Authorization Act

RAM - Random Antiterrorism Measure

RDS - Records Disposition Schedule

UCMJ – Uniform Code of Military Justice

Attachment 2

PRIVATELY OWNED FIREARMS PROHIBITED LOCATIONS

Figure A2.1., Privately Owned Firearms Prohibited Locations

All Restricted Areas
All Sensitive Compartmented Information Facilities (SCIF)
Bldg. 29, Rooms 205 and 225 (AA&E)
Bldg. 42, Installation Confinement Facility (when a prisoner/detainee is present)
Bldg. 88, Room B12 (Honor Guard)
Bldg. 166, AAFES Weapons Vault
Bldg. 189, Navy Operational Support Center Omaha
Bldg. 301D, Rooms 109 – 112 (COMSEC Office)
Bldg. 301D, Room 2N3 (OCSE)
Bldg. 301D, STRATCOM Annex
Bldg. 301D, Weapons Vault
Bldg. 307, E-4B CLS/COMBS Warehouse
Bldg. 323C, Finance Vault
Bldg. 527, Bioenvironmental
Bldg. 540, Combat Arms Armory
Bldg. 457, Bennie Davis Maintenance Facility
Munitions Storage Area (MSA), to include Bldgs. 535, 536, 537 and 538
Erhling Bergquist Clinic
Federal Courtroom
U.S. Post Office
Bldgs. 1000, 1001, 1002, 1003, 1011, 1022 (USSTRATCOM Used Facilities)

Attachment 3

LEOSA OFF-LIMITS PLACARD

Figure A3.1., LEOSA Off-Limits Placard

